

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 23-009

**Amendments to Title 6, Chapter 3 Section 6-301.25 of the Chickasaw Nation Code
(Juvenile Detention)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted interim provisions regarding the detention of juveniles, and

WHEREAS, the Courts of the Chickasaw Nation now have additional resources and facilities available for the detention of juveniles, and

WHEREAS, the Chickasaw Tribal Legislature desires to authorize the Courts to utilize such resources and facilities.

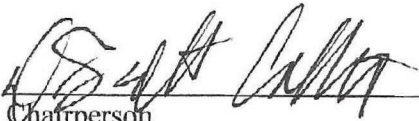
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 3 Section 6-301.25 of the Chickasaw Nation Code (additions are shown in red, deletions are stricken through):

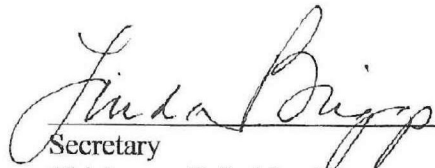
"SECTION 6-301.25

JUVENILE DETENTION; INTERIM USE.

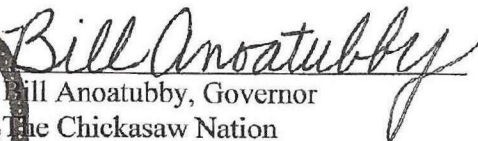
~~In as much as there is no other tribal-owned and operated juvenile Detention facility in Oklahoma,~~ **t** The Chickasaw Nation pledges that it will utilize the Sac & Fox Nation's Juvenile Detention Facility when necessary ~~available~~ and any or all other appropriate resources and facilities, at the Court's discretion, for the detention of juveniles. ~~when the need presents itself."~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 15, 2006, by a vote of 9 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature




Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 15 2006

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(Juvenile Detention)**

Explanation: This resolution amends Section 6-301.25 of the Chickasaw Nation Code so that the Courts of the Chickasaw Nation may use any appropriate facility for the detention of juveniles, including the Sac & Fox Nation's Juvenile Detention Facility. Most cases in the Chickasaw Courts that result in the detention of a juvenile do not require a lock-down facility such as the Sac & Fox Nation's Juvenile Detention Facility.

Requested By: Tim Colbert, Committee Chair
Court development Ad Hoc Committee

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